CITY OF CLAYTON
CITY ATTORNEY'S IMPARTIAL ANALYSIS OF MEASURE M
1% TRANSACTIONS AND USE (SALES) TAX

On June 16, 2026, the City Council voted unanimously to place Measure M on the November 3, 2026 General Municipal Election ballot.

If approved by a majority of Clayton voters, this Measure would authorize a one percent (1%) retail transactions and use (sales) tax within the City of Clayton. A one percent (1%) rate equates to an extra $1 per $100 purchased. It is estimated that Measure M will provide an additional $1,000,000 in annual local funding that could be used for City of Clayton programs, services and facilities, including police services, traffic enforcement and road safety programs, road and sidewalk improvements, enhancing library and recreation services, park maintenance, and recruitment and retention of City employees. This tax would be a "general tax," meaning that revenues raised from the tax would go into the City's general fund to pay for any lawful City program, improvement, or service.

The California Constitution (Proposition 218) and Revenue and Taxation Code section 7285.9 authorize the City to levy a general transactions and use/sales tax at a rate of one percent (1%) so long as the tax is approved by a majority of the voters voting in an election on that issue. If approved, the tax would become operative on April 1, 2027 and remain in effect until repealed by voters at a subsequent election.

The tax would be paid in addition to current sales taxes and would be collected at the same time and in the same manner as existing sales taxes. All revenues raised by the tax would remain in the City and would not be shared with the State, County or any other agency.

A "yes" vote on Measure M will authorize the 1% transactions and use (sales) tax.

A "no" vote on Measure M will not authorize the 1% transactions and use (sales) tax.

The above statement is an impartial analysis of Measure M. If you desire a copy of the Measure, please call the Office of the City Clerk at (925) 673-7300 and a copy will be mailed at no cost to you.

/s/ Malathy Subramanian
City Attorney